



File No: EXP202210006

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 14, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against ESTUDIO VILLALBA ANTIQUE, S.L. (hereinafter, the claimed party), through the Agreement that is transcribed:

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File No: EXP202210006

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: Mr. A.A.A. (hereinafter the claimant) filed a complaint with the Spanish Agency for Data Protection on 04/20/2022. The complaint is directed against ESTUDIO VILLALBA ANTIQUE, S.L. with NIF B88080031 (hereinafter the claimed party). The reasons for the complaint are as follows: the affected party states that he was contacted by telephone by the real estate office of Tecnocasa in the town of Collado Villalba, referencing his specific personal data without having provided them, which led him to ask the person who contacted him by phone to tell him where they came from, being informed that the data was obtained through Inglobaly, ABCteléfonos, and Guía-te bitmon among others; on 04/20/2022, he sent an email requesting Inglobaly to know what data they hold and the cancellation of the same, warning that he had not authorized its processing and transfer, receiving a response on the same date, which he provides, in which they request a copy of his ID to proceed with his request. He provides a copy of the exchanged emails with the claimed party.

SECOND: On 05/12/2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

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THIRD: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

On 06/07/2022, the entity QUALITY-PROVIDER S.A. (Inglobaly) was requested to present the following information regarding the claimant within ten working days:

1. Complete list of the data they hold about the affected party.
2. Origin of each of the data, detailing the consent or legal basis they have to carry out processing, as well as the date on which they were collected.
3. Details of the transfers or communications of data to third parties, indicating for each transfer the date it was made, the consent of the data subject, or the legal basis.

Details of the data transfers made to TECNOCASA in Collado Villalba of the personal data of the claimant, providing:

- Date on which the data was communicated to TECNOCASA
- Contract, invoice, or documentation that allows for the verification of the commercial agreement for the transfer of the claimant's data
- Set of data communicated to TECNOCASA
- Information provided to the data subject that supports the aforementioned data communication

- Consent or legal basis of the affected party for the transfer of their data to TECNOCASA.

In the response received, the entity states that it considers there to be an inadequacy of the initiated procedure, as well as a manifest incompetence of the Spanish Agency for Data Protection for the processing of the present procedure by virtue of what is stipulated by Directive (EU) 2016/679 of the European Parliament and of the Council, of October 27, 2016, regarding the protection of persons who report breaches of Union Law, which came into force on December 17, 2016, requesting that the Spanish Agency for Data Protection declare itself incompetent and refrain from processing the present file.

- On 02/15/2023, Estudio Villalba Antique, S.L. was requested to respond to the following questions:

- Corporate name and CIF of your entity

- All documentation that justifies the purchase or transfer of data to INGLOBALY and/or QUALITY PROVIDER.

- Copy of the data acquired from Mr. A.A.A. with NIF ...

- Processing carried out with said data

- List of calls made to Mr. A.A.A.

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Estudio Villalba Antique, S.L responded on 15/03/2023 indicating:

- Company name: Estudio Villalba Antique, S.L. and Tax ID: B88080031

- Attached invoice for the information services contracted with QUALITY PROVIDER, which evidenced its relationship with the same.

- It stated that: "This entity made a call to the subject in question in March 2022. This individual, in April 2022, called this entity requesting the cancellation of their data, which was immediately attended to in order to respond to their request and provide personal attention to it, proceeding immediately to the deletion of their data in response to the request received and in compliance with the aforementioned legislation in this document."

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, insofar as they do not contradict them, by the general rules on administrative procedures."

II

The reported facts materialize in the processing of the claimant's data without authorization or consent when contacted by the respondent, who indicated that the data had been provided by a third party, which could violate the regulations on the protection of personal data.

Article 58 of the GDPR, Powers, states:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

i) impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

(...)"

Firstly, Article 6, Lawfulness of processing, of the GDPR in its paragraph 1, establishes that:

“1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, particularly when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

On the other hand, Article 4 of the GDPR, Definitions, in its paragraphs 1, 2, and 11, states that:

“1) ‘personal data’: any information relating to an identified or identifiable natural person (‘data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

“2) ‘processing’: any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction;

“11) ‘consent of the data subject’: any freely given, specific, informed, and unambiguous indication of the data subject’s wishes by which they, by a statement or by a clear affirmative action, signify their agreement to the processing of personal data relating to them.”

III

It should be noted that the processing of data requires the existence of a legal basis that legitimizes it.

In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of the data subject, in particular, when it is necessary for the execution of a contract in which the data subject is a party or for the application, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or fundamental rights and freedoms of the data subject that require the protection of such data. Processing is also considered lawful when it is necessary for compliance with a legal obligation applicable to the data controller, to protect vital interests of the data subject or another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

In this case, there is no evidence of any legal basis as provided for in Article 6.1 of the GDPR for the

processing of the personal data of the complainant.

IV

The infringement attributed to the respondent is classified under Article 83.5 a) of the GDPR, which considers that the infringement of "the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9" is subject to penalties, in accordance with paragraph 5 of the aforementioned Article 83 of the Regulation, "with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount."

The LOPDGDD in its Article 71, Infringements, states that: "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

And in its Article 72, it considers for the purposes of prescription, that they are: "Very serious infringements:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe in three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)

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In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this Article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented in accordance with Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to approved certification mechanisms under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement. In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

"2. According to the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data."

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c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party could have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) To have, when not mandatory, a data protection officer.

h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party."

- According to the transcribed provisions, for the purpose of determining the amount of the fine to be imposed in the present case for the infringement classified in article 83.5.a) and article 6.1 of the GDPR for which the respondent is held responsible, an initial assessment considers the following concurrent factors:

The aggravating circumstances are:

- The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered. The facts revealed affect a basic principle related to the processing of personal data, such as legitimacy, which the regulation penalizes with the utmost severity; furthermore, this infringement is of the nature of so-called permanent infringements, violating data protection regulations throughout the entire period during which the data is subject to processing; regarding the damages caused, it should not be forgotten that we are dealing with a fundamental right that the GDPR seeks to protect individuals concerning the processing of their personal data, considering the risks that such processing may generate. And regarding the number of affected parties, although there is only one complaint, the number of potentially affected parties should be taken into account, since in many cases the infringement takes on "systemic" connotations and, therefore, may affect, even at different times, other parties who have not submitted complaints or reports to the supervisory authority (article 83.2.a) of the GDPR).

- The activity of the allegedly infringing entity is linked to the processing of personal data of both clients and third parties (article 76.2.b) of the LOPDGDD in relation to article 83.2.k).

- The intent or negligence in the infringement. The conduct of the respondent suffers from a "serious" lack of diligence since it did not have legitimacy for the processing of the data; it is part of the diligence that is required and inherent to its activity that the respondent verifies that it possesses the legitimacy it claims to exhibit and that effectively enables it to process the data of its owner (article 83.2.b) of the GDPR).

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In accordance with the above factors, it is deemed appropriate to impose a fine of 5,000 euros on the respondent for the violation of article 6.1 of the GDPR.

Therefore, in accordance with the stated,

By the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against ESTUDIO VILLALBA ANTIQUE, SL, with NIF B88080031, for the alleged infringement of article 6.1 of the GDPR, classified in article 83.5.a) of the GDPR.

SECOND: TO APPOINT B.B.B. as Instructor and C.C.C. as Secretary, indicating that either of them may be challenged, if applicable, in accordance with the provisions of articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, the documents obtained and generated by the Inspection Services; all of which are part of the file.

FOURTH: THAT for the purposes provided in article 64.2 b) of Law 39/2015, of October 1, and article 58.2.b) of the GDPR, the sanction that may correspond for the violation of article 6.1 of the GDPR would be 5,000 € (five thousand euros), without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this Agreement to ESTUDIO VILLALBA ANTIQUE, SL, with NIF B88080031, expressly indicating its right to a hearing in the procedure and granting it a period of TEN WORKING DAYS to submit allegations and propose any evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number that appears in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for the submission of allegations to this initiation agreement; which will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 4,000 euros, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which

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which will result in a reduction of 20% of its amount. With the application of this reduction, the penalty would be set at 4,000 euros, and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the penalty is cumulative with the one that corresponds to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the penalty would be set at 3,000 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the penalty.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (4,000 or 3,000 euros), you must make it effective by depositing it into account no. ES00 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at Banco CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of nine months from the date of the initiation agreement or, where applicable, from the draft initiation agreement. After this period, it will expire, and consequently, the file of actions will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On April 27, 2023, the respondent has proceeded to pay the penalty in the amount of 3,000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or appeal in the administrative route against the penalty and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures," provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate penalty.

2. When the penalty is solely pecuniary or when a pecuniary penalty can be imposed alongside a non-pecuniary penalty but the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the penalty is solely pecuniary, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed penalty, which will be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the penalty. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,
the Director of the Spanish Agency for Data Protection RESOLVES:
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FIRST: DECLARE the termination of the procedure EXP202210006, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: NOTIFY this resolution to ESTUDIO VILLALBA ANTIQUE, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as stipulated by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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